

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: August 12, 2013

TYPE OF DOCUMENT: (☐ ORDINANCE) (☒ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (☐ CHANGEORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (☐ APPLICATIONS/LICENSES/PERMITS)
(☐ APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) Sean Allen

EXACT WORDING FOR AGENDA: A Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 2nd Filing, a replat of Lot 1, Block 2, Deerhaven Subdivision, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____)

CONTACT PERSON: Brett Walker PHONE: 637-6305 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	(☐)	(☐)	(☒)
Were Bids called for?	(☐)	(☐)	(☒)
Affected parties notified of Council procedure and dates?	(☒)	(☐)	(☐)
Has bond, insurance or other security been arranged?	(☐)	(☐)	(☒)
Have legal descriptions been checked?	(☒)	(☐)	(☐)

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The Cheyenne Planning Commission recommended approval of the above described Expedited Preliminary Plat, advancing the Final Plat to the Governing Body. by a vote of 2 to 0, with Marc Woods abstaining, at their meeting on August 5, 2013. See the attached Staff Report for more definitive information.

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: August 7, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office

Engineering Tech Branch

Development Office

Building Safety Office

STAFF REPORT

Deerhaven Subdivision, 2nd Filing

Summation

Expedited Subdivision Plat Process (County)

CASE NUMBER(s): UDC-13-00273

FILE CODE: DHVN-PF

PREPARED BY: Brett Walker

MEETING August 5, 2013 – Planning Commission

DATES: August 12, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Final Plat Map
- Revised Final Plat Map (7/29/13)

RECOMMENDATION: The Planning and Development office recommends approval of the County Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

STAFF REPORT UPDATE (8/6/2013): At its regular meeting Monday, August 5, 2013, the Cheyenne Planning Commission recommended approval of the above described Expedited Preliminary Plat by a vote of 2 to 0, with Marc Woods abstaining, advancing the Final Plat to the Governing Body.

STAFF REPORT

Deerhaven Subdivision, 2nd Filing

Expedited Subdivision Plat Process (County)

CASE NUMBER(s): UDC-13-00273

FILE CODE: DHVN-PF

PREPARED BY: Brett Walker

MEETING August 5, 2013 – Planning Commission

DATES: August 12, 2013 – City Council

OWNER: Deerhaven Land Company, Inc. 307-632-2710
3701 Ridge Road
Cheyenne, WY 82001

AGENT: Casey Palma 307-634-7273
Steil Surveying Services
1102 W. 19th Street
Cheyenne, Wyoming 82001

PROJECT: Deerhaven

WORK DESCRIPTIONS: Divide a single lot into four to allow for single ownership of four-plex lots

LOCATION:

- (1) Legal Description: A replat of Lot 1, Block 2, Deerhaven Subdivision, Laramie County, Wyoming
- (2) Location: Southeast corner of the intersection of Montalto Drive and E. Fox Farm Road
- (3) Address(es): Various

SIZE: Total site: 6.61 acres

CURRENT ZONING: MR Medium Density Residential (County)

PROPOSED ZONING: MR Medium Density Residential (County)

EXISTING LAND USE: Residential four-plexes

PROPOSED LAND USE: Residential four-plexes

Expedited Plat/UDC-13-00273/DHVN-PF

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Crow Creek	LI	City
South	City Maintenance Facility	LI	City
East	Railroad	LI	City/County
West	Low-Density Residential	LI	City/County

EXPEDITED REVIEW: This plat is being pursued as an County expedited application, as it is within the 1-mile boundary. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. In other words proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Staff recommends allowing the plat to proceed as an expedited application.

EXECUTIVE SUMMARY:

This application is to allow for the division of a single lot into 4 in order to accommodate individual ownership of 3 four-plexes that are nearly finished in their construction. The fourth lot will continue to be held in a single ownership, and has 17 four-plexes either proposed or constructed on it, as well as the detention facilities. This County subdivision was platted originally in 2010 and drainage and traffic issues were addressed at that time. The subdivision is rapidly approaching buildout. As indicated, this plat is being processed as an expedited review in the City, and has already been approved through the County process.

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE. *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

PlanCheyenne calls out Urban Residential as the Future Land Use for this area. The Urban Residential category allows for a broader variety of residential types, including single-family residences, duplexes,

Expedited Plat/UDC-13-00273/DHVN-PF

patio homes, townhomes, condominiums and apartment. Supporting and complementary uses, including open space and recreation, schools, places of worship and other public or civic uses are encouraged. It is not the intent of this plan to change existing stable neighborhoods with single family residential development, except those where redevelopment is desirable.

This application is in conformance with a number of Policies outlined in PlanCheyenne.

PLANNING. *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This application creates separate ownership for three 4-plex structure, and leaves the remaining parcel relatively unchanged. As previously stated, a majority of the infrastructure has already been constructed, and does not change with this County Plat. A platted easement across the parking lot allows for continued access to each structure.

STANDARDS. *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

This land is being developed in the County, and there are no community facility fees due to the City. In the event that annexation of this area is applied for and approved, community facility fees may be required at the time of annexation.

The City will not have any maintenance or other responsibility for the road networks established here. A road network plan was not submitted. The assumption is that they will be tying into the adjacent street network, which appear to be adequate with Fox Farm Rd immediately adjacent to these lots to the north and Montalto Road built to County standards. The City does not have any maintenance responsibilities for any of the roads associated with this subdivision.

PHASING. *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

No phasing is proposed.

STUDIES. *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

As only the lot lines are changing, and most of the construction has already occurred, no additional studies were required for this replat. All applicable studies were submitted with the first filing in 2010.

ZONING. *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

Lots already have structures on them and were reviewed for compliance with the County zoning regulations by the Laramie County Planning Department at the time of development.

SURROUNDING DEVELOPMENT. *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This plat will not have an effect on what is currently platted on this site nor will it impact the surrounding greater than it already is.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

County Planning: John Shepard

Staff recommended approval with the following conditions to the Laramie County Planning Commission:

1. The applicant shall add an access easement to the plat providing legal access from the entrance of Montalto Drive to the three parcels on the Northeast portion of the property prior to recordation.
2. The parcels shall be re-labeled to reflect the standard language for re-platted parcels prior to recordation.

Engineering Department: Gary Stogsdill

Can lots be numbered 1-4 instead of 1, 1a, 1b, 1c ? **Note:** *Resolved. Addressed with submittal of revised maps on 7/29/2013*

Fire Department: Jim Schamerhorn

There is no impact on fire operations since the development is outside our service area and will be protected by Fire District 1.

County Assessor: Clarice Blanton

The lots should be numbered 1, 2, 3 and 4 instead of 1-A, 1-B, etc. as this is a new filing. **Note:** *Resolved. Addressed with submittal of revised maps on 7/29/2013*

Development: Brandon Cammarata

Recommend approval of the expedited preliminary plat and that the governing body adopt the Final Plat

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: Engineering-Drainage, Engineering-Traffic, Engineering-General, Urban Planning

AGENCIES AND REVIEWERS NOT RESPONDING: South Cheyenne Water and Sewer District,
County Clerk

OTHER COMMENTS RECEIVED: None

Encl: Preliminary Plat Map
Final Plat Map
Aerial Map

cc: Owner
Agent/Applicant
File

Approved as to
form only:

D. White

Date: 8/7/2013

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR DEERHAVEN SUBDIVISION, 2ND FILING, A REPLAT OF LOT 1, BLOCK 2, DEERHAVEN SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF MONTALTO DRIVE AND E. FOX FARM ROAD)."

WHEREAS, Deerhaven Land Company, LLC, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Deerhaven Land Company, LLC, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, and easements; and

WHEREAS, the above described subdivision plat is within one (1) mile of the boundaries of the City of Cheyenne, Wyoming, and therefore, governing body approval is required in accordance with W.S. 34-12-103; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Deerhaven Subdivision, 2nd Filing, a replat of Lot 1, Block 2, Deerhaven Subdivision, Laramie County, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF

_____, 2013.

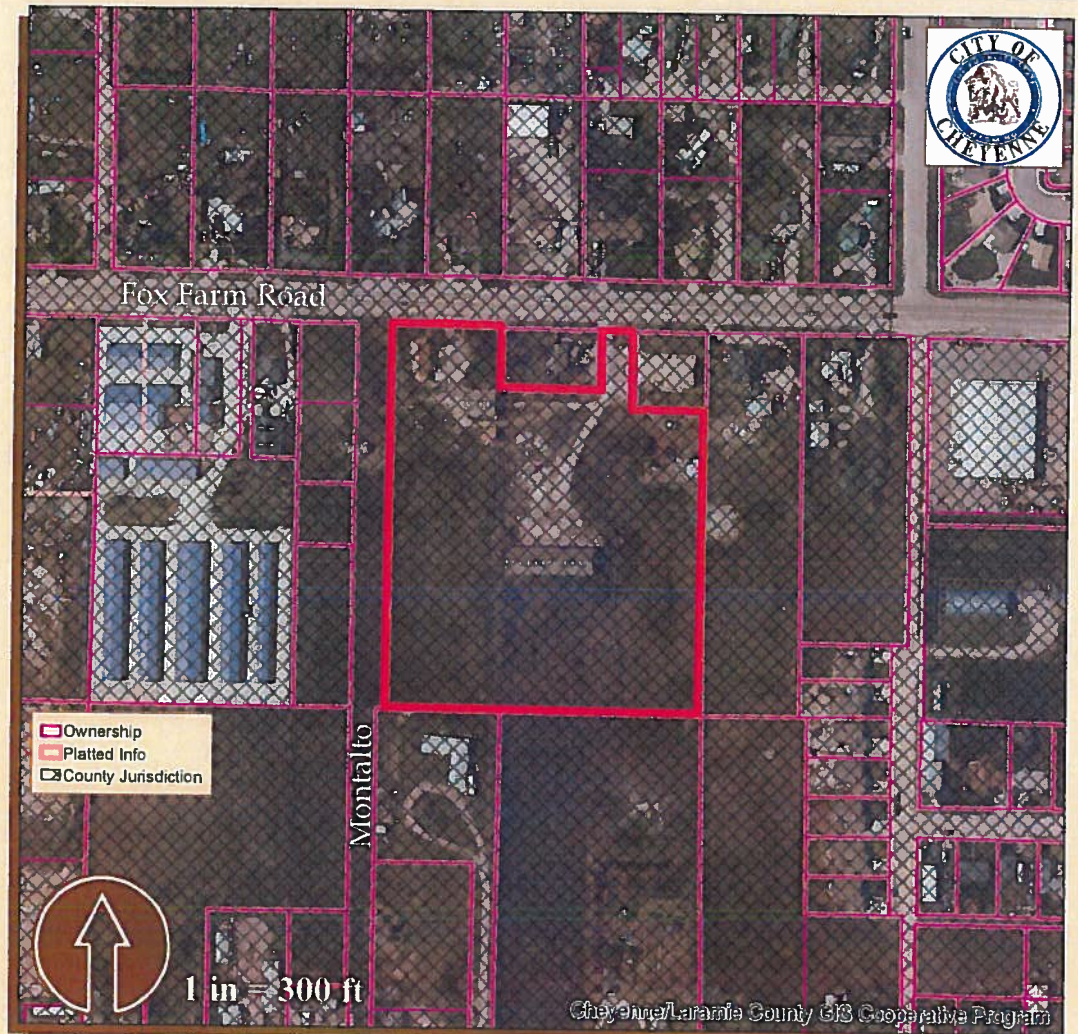
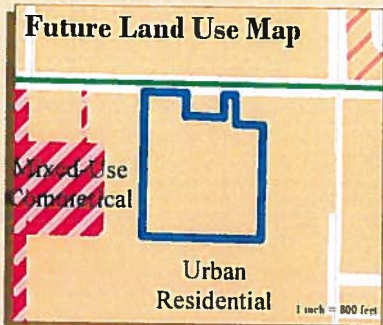
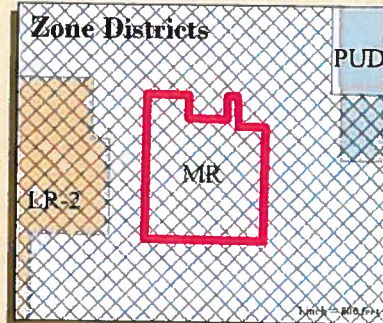
RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

Deerhaven 2nd Filing

UDC-13-00273
Expedited
Preliminary Plat
(County 1-Mile)



5 July 2013 BRW

Community Plan - SuperPage 3-13

Urban Residential Category

Appropriate Uses
Primary Uses
The Urban Residential category allows for a broad variety of residential types, including single family residences, duplexes, town houses, townhomes, condominiums, and apartments.

Secondary Uses
Supporting and complementary uses, including open space and recreation, schools, places of worship, and other public or civic uses are encouraged. Senior housing facilities are also appropriate. A neighborhood commercial may be appropriate in newly developing areas if it complies with the criteria for Neighborhood Business Centers on page 3-4. Not the intent of this plan is to encourage stable neighborhoods with single family residential development, except those where redevelopment is desirable.

Desired Characteristics and Location
Urban Residential is shown in established neighborhoods and newly developing neighborhoods within the Urban Service Boundary. This Plan encourages new neighborhoods to be developed in traditional development patterns with a mix of dwelling lot sizes, housing types, and home sizes that are well integrated with one another. New urban residential developments should have a wide variety of housing types, lot sizes, styles, and patterns. Future neighborhoods should also include well planned amenities such as parks and open space.

The core of an urban residential neighborhood should contain apartments and townhomes and may even include neighborhood retail uses.

organized around a public space that is inviting for pedestrians. The neighborhood should also contain parks and open space. The secondary uses are intended to serve the neighborhood and should be developed and operated in harmony with the residential character.

Within urban residential neighborhoods, streets and sidewalks should provide connections, be lively, and within the neighborhoods to make it safe and convenient for people to walk and ride bicycles.

Urban Residential areas will be served by central water and sewer, and will contain paved streets with sidewalks.

Neighborhoods will have local ones between different intensities or activities. For example, lower density residential (i.e., with a minimum of four dwelling units per acre and ranging up to six dwelling units per acre) is appropriate away from shopping and other activity centers and should be accessed from local or collector streets. For these areas, some common open space should be provided. Open space would be usable and/or connected.

Urban Residential Example.

Mixed family residential (i.e., townhomes and apartments with densities higher than six dwelling units per acre and up to 20 dwelling units per acre) is appropriate in locations closer

Community Plan - SuperPage 3-14

Urban Residential

to activity centers or supporting business uses. These types of housing are generally served by collector streets or arterial streets and in the future should have access to transit or transit centers. In these multi-family residential areas with density higher than six dwelling units per acre, some common open space or other amenity should be provided. Open space should be usable and/or connected. In addition, for multiple family residential projects, other private recreational amenities should be provided, such as ball fields, playgrounds, or garden courtyards. Where it is appropriate to lower density development, setbacks and building heights should step down so that no building is 150% taller than an adjacent building. The development should provide open space buffers.

IN A TRADITIONAL OR MIXED-USE NEIGHBORHOOD

- Streets and sidewalks are connected and sidewalks and trails are continuous.
- Open space and parks are an amenity and are connected to greenbelts.
- The neighborhood contains a "center" (i.e., school and park) and commercial services that are accessible and connected to one another.
- Residential uses are somewhat mixed (i.e., single family, townhomes and apartments, and lots).

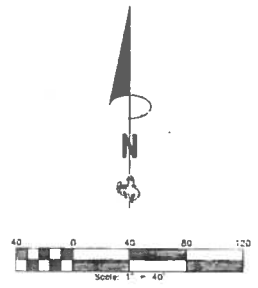
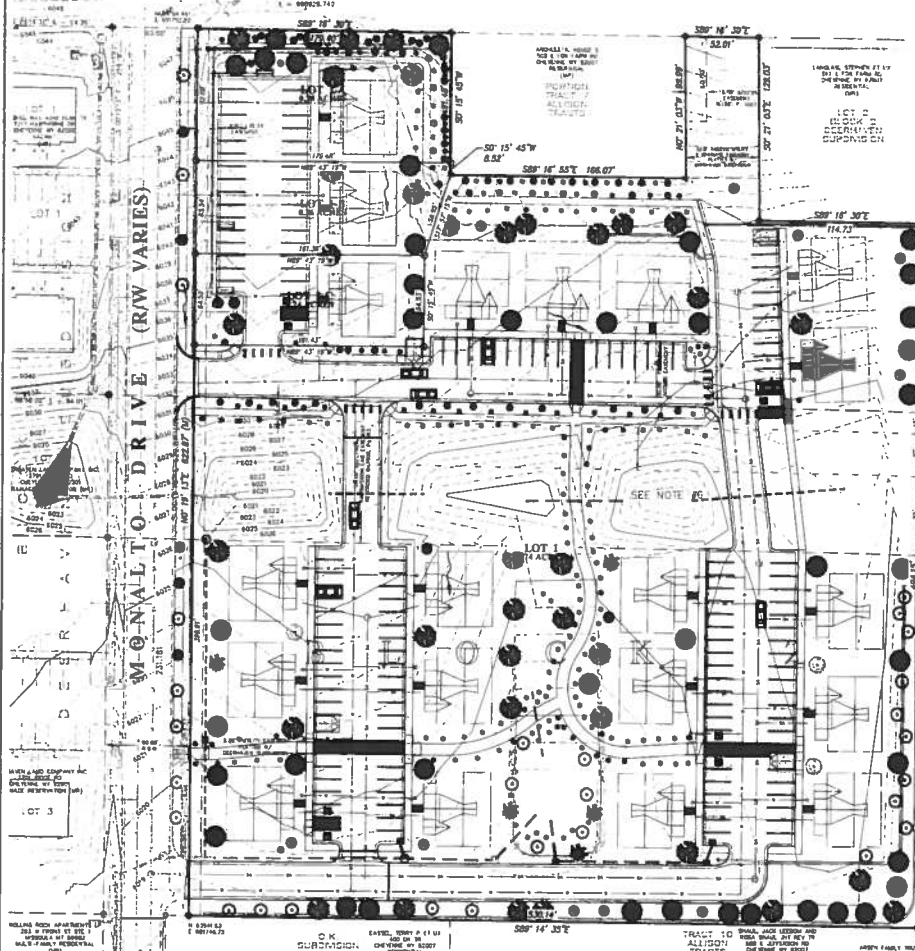
Pocket park and neighborhood park examples in mixed-use residential neighborhoods.

Appropriate Zoning Districts: LR-4 (established), LR-2 (developing), MR-1 (established), MR-2 (developing), HR-1 (established), HR-2 (developing).

Applicant: Jim Woods III
Agent: Casey Palma, Steil Surveying Services

This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

EAST FOX FARM ROAD (80' R/W)



DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: Deerhaven Land Company, Inc., a Wyoming Corporation, owner in fee and sole owner of the following described tract of land: Lot 1, Block 2, Deerhaven Subdivision. Has caused the same to be surveyed, plotted and known as DEERHAVEN SUBDIVISION, 2ND FILING, done hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed in accordance with their duties, and do hereby grant the easements for the purposes indicated hereon.

Deerhaven Land Company, Inc., a Wyoming Corporation

by: James O. Woods III

LEGEND

- FOUND 1 1/2" ALUM. CAP STAMPED "SSS PLS 5810"
- FOUND 1 1/2" ALUM. CAP STAMPED "LS 3047"
- FOUND 1 1/2" YELLOW PLASTIC CAP STAMPED "LS 3804"
- FOUND 1 1/2" ALUM. CAP STAMPED "LS 3804"
- FOUND 2 1/2" ALUM. CAP STAMPED "LS 3804"
- FOUND 1 1/2" ALUM. CAP STAMPED "LS 558"
- FOUND 1 1/2" ALUM. CAP STAMPED "PLS 662"
- FOUND 1 1/2" ALUM. CAP STAMPED "SSS PLS 2500"
- SET 1 1/2" ALUM. CAP STAMPED "SSS PLS 5810"
- (M) MEASURED DISTANCE / BEARING FROM FIELD SURVEY
- (R) RECORDED DISTANCE / BEARING FROM RECORDED PLATS

NOTES

- 1) NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN FEMA SPECIAL 100-YEAR FLOOD HAZARD AREA AS SHOWN ON FIRM PANEL # 58031234F, DATED JANUARY 17, 2007.
- 2) BASES OF BEARINGS - CITY OF CHEYENNE CONTROL MONUMENTS "ELITE" AND "COLLECT".
- 3) WATER AND SEWER SERVICE TO EACH LOT TO BE PROVIDED BY SOUTH-CHEYENNE WATER AND SEWER DISTRICT (SCWD).
- 4) ALL UTILITY EASEMENTS LIMITED TO CHEYENNE LIGHT, FUEL, AND POWER, CABLE, TELEPHONE, OPTIC FIBER AND/OR SPOKE AND THEIR LOCAL SUCCESSORS OR AGENTS ONLY, UNLESS SHOWN OTHERWISE.
- 5) FIRE PROTECTION PROVIDED BY LARAMIE COUNTY FIRE DISTRICT NO. 1.
- 6) NO STRUCTURES OR PLANTINGS ALLOWED IN THE EXISTING 100.00' ELECTRICAL TRANSMISSION LINE EASEMENT ON LOT 1. THIS FEDERAL EASEMENT IS A RESTRICTED AREA - ALL CONSTRUCTION ACTIVITIES WITHIN SAID EASEMENT SHALL BE COORDINATED WITH WESTERN AREA POWER ADMINISTRATION P.O. BOX 3700, LITTLETON, COLORADO 80130-3700.
- 7) ALL UNDEVELOPED LOT CORNERS, CURVE POINTS AND ANGLE POINTS TOP BE SET WITH A 3/4" x 3/4" STEEL REBAR WITH A 1 1/2" ALUMINUM CAP STAMPED "SSS PLS 5810".
- 8) SIDEWALKS, BUILDINGS AND PARKING AREAS SHOWN ARE CURRENTLY UNDER CONSTRUCTION.

COMPUTATION TABLE

TOTAL SITE AREA:	6.61 ACRES
STREET P.W.:	0
NUMBER OF LOTS:	0
# OF RESIDENTIAL LOTS:	0
SMALLEST LOT SIZE:	0.34 ACRES
LARGEST LOT SIZE:	3.74 ACRES
DETENTION AREA:	SEE DRAINAGE STUDY FOR DEERHAVEN SUBDIVISION

ZONING

EXISTING ZONING: MR
PROPOSED ZONING: MR

SURVEYOR:

STER SURVEYING SERVICES, LLC
1102 WEST 18TH STREET
CHEYENNE, WY 82001
307-634-7273

ENGINEER:

Benchmark Engineers, PC
1920 Thomas Avenue, Suite 620
CHEYENNE, WY 82001
307-634-9064

OWNER/DEVELOPER:

DEERHAVEN LAND COMPANY INC
3701 RIDGE RD
CHEYENNE, WY 82001
307-635-8878

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF LOT 1, BLOCK 2, DEERHAVEN ESTATES, EXCEPT ALL PREVIOUSLY PLATTED AND RECORDED EASEMENTS AS SHOWN.

PRELIMINARY PLAT FOR DEERHAVEN SUBDIVISION 2ND FILING

A REPLAT OF LOT 1, BLOCK 2,
DEERHAVEN SUBDIVISION,
LARAMIE COUNTY, WYOMING.

PREPARED JUNE, 2013



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 WEST 18TH ST. CHEYENNE, WY. 82001 • (307) 634-7273
758 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 332-8769

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VICINITY MAP



